

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DCCED

Date: 5/21/2026

Bill Number: SB 24

Short Title (as it appears on BASIS): Tobacco/Nicotine/E-Cig Age; E-Cig Tax

What action do you recommend the Governor take?

Select one.

☐ SIGN ☐ VETO ☒ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

DCCED/the Division of Corporations, Business, and Professional Licensing (CBPL) is not the lead agency on this bill. We are only advising for the sections of the bill that impact our division (Sections 26-29), which are minimal and simply change Alaska's minimum age to purchase tobacco products, electronic smoking products, or products containing nicotine from 19 to 21 years of age. For those sections, DCCED recommends LWOS.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

Related to DCCED, this bill will change Alaska's minimum age to purchase tobacco products, electronic smoking products, or products containing nicotine from 19 to 21 years of age to align with Federal law (21 U.S.C. 387f(d) as amended by PL 116-94, December 20, 2019). We'll defer to the other impacted departments on the action to take due to the other sections of the bill. However, it also levies a tax on the sales price on closed electronic smoking products and vapor products in the state.

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CBPL issues and investigates violations of business licenses that hold endorsements and sell tobacco products, electronic smoking products, or products containing nicotine. A change to raise the minimum age to purchase these products from 19 to 21 years old does not significantly change the process or procedures of the business license program. CBPL has been enforcing the sales age of 21 under federal law since 2020, and it has not resulted in a demonstrable increase in investigations or actions against endorsement holders.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

-- Only Sections 26-29 and Section 36 of this legislation impact CBPL's operations --

- | | |
|------------|--|
| Section 26 | Amends AS 43.70.075(f) – under <i>Alaska Business License Act: License Endorsement</i> – to raise the minimum age from 19 to 21 for the sale of electronic smoking products, tobacco products, or products containing nicotine without a prescription. |
| Section 27 | Amends AS 43.70.075(m) – under <i>Alaska Business License Act: License Endorsement</i> – to conform to the minimum age change specific to when an endorsement holder engages in the sale of such products to someone under 21 years of age (versus 19 years of age). |
| Section 28 | Amends AS 43.70.075(t) – under <i>Alaska Business License Act: License Endorsement</i> – to conform to the minimum age change specific to the department's ability to reduce a suspension if the person holding the endorsement had adopted and enforced a written policy against selling such products to a person under 21 years of age (versus 19) in violation of AS 11.76.100, .106, .107, or .109. |
| Section 29 | Amends AS 43.70.075(w) – under <i>Alaska Business License Act: License Endorsement</i> – to conform to the minimum age change specific to convictions of violations of AS 11.76.100, .106, .107, or .109. |
| Section 36 | Provides a July 1, 2026, effective date for all Sections except 15, 18, 25, and 31. |

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any "rider" bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the "rider bill" or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

Companion – HB 46 by Rep. Hannan

Riders – unknown, we'll defer to other agencies more impacted by this legislation.

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Amendments – unknown, none related to the sections that impact our agency (noted above) so we'll defer to other agencies more impacted by this legislation.

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Support:

- Alaska Children's Trust, (907) 248-7676, kidsfirst@alaskachildrenstrust.org
- Alaska Native Health Board (ANHB), Chief William F. Smith, Chairman, (907) 729-7510
- Alaska Society of Addiction Medicine (AKSAM), Betty K. Anderson, MD, AKSAM Vice President
- American Lung Association in Alaska, Carrie Nyssen, Senior Director of Advocacy, 1-800-586-4872
- Alyssa Bloom-Keill, akkeill2@gmail.com
- Beverly K Wooley, Big Lake resident, (907) 830-5503

Opposition:

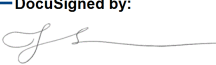
- Americans for Tax Reform, Dennis Hull, State Affairs Manager, (202) 785-0266
- Alex McDonald, Owner of Ice Fog Vapor in Fairbanks, alex@icefogvapor.com
- Andrew W., walsh99705@gmail.com
- Brad Boedecker, Eagle River Chevron, erchevron@mtaonline.net
- Shaun D'Sylva, Fatboy Vapors Alaska, LLC, (206) 948-1290
- Smoke-Free Alternatives Trade Association, April L. Meyers, SFATA Board President & CEO, (202) 251-1661
- Susan Allmeroth, Two Rivers resident, susanallmeroth@gmail.com

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

N/A – we'd recommend LWOS

Commissioner's Signature:

DocuSigned by:

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Date: 6/1/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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